

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ROGER SMITH

SUMMONS

Plaintiff,

Index No.: 33859/2020E

-against-

The Basis of Venue is:
Location of IncidentCITY OF NEW YORK; MALACHI MCKENITH,
CARLOS VELASQUEZ; JOHN AND JANE DOE ONE
THROUGH FIVE, THE DEPARTMENT OF HOMELESS
SERVICESPlaintiff designates Bronx
County as the place of trial.

Defendants.

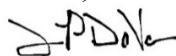
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 11, 2021

Yours, etc.

DEVERNA LAW
John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025

F- (212) 321-0024

Defendants' Addresses:

CITY OF NEW YORK, Corporation Counsel; 100 Church Street, NY, NY 10007

MALACHI McKENITH, 40th Precinct, 257 Alexander Ave, The Bronx, NY 10454

CARLOS VELASQUEZ, 40th Precinct, 257 Alexander Ave, The Bronx, NY 10454

JOHN and JANE DOE ONE THROUGH FIVE, 33 Beaver Street, 17th, New York, NY 10004

THE DEPARTMENT OF HOMELESS SERVICES, 33 Beaver Street, 17th, New York, NY 10004

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x

ROGER SMITH

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

CITY OF NEW YORK; MALACHI McKENITH,
CARLOS VELASQUEZ; JOHN AND JANE DOE ONE
THROUGH FIVE, THE DEPARTMENT OF HOMELESS
SERVICES,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ROGER SMITH by his attorneys, DEVERNA LAW, as and for his Verified
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a February 26, 2019 incident, in which defendants acting under color of state law, unlawfully assaulted and detained Plaintiff. As a direct and proximate cause, Plaintiff was unlawfully detained by the New York City Police Department within the jurisdictional confines of Bronx County, New York. Plaintiff was

deprived of his liberty for several hours. Plaintiff suffered physical and emotional injuries, the extent of which is still unknown.

3. This action and all associated claims have been timely brought within the applicable statutes of limitations.
4. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
5. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

6. Plaintiff ROGER SMITH is a resident of the state of New York.
7. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
8. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
9. In addition, at all times relevant hereto, Defendant City, acting through the THE DEPARTMENT OF HOMELESS SERVICES ("DHS"), was responsible for the policy, practice, supervision, implementation, and conduct of all DHS matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all DHS personnel, including security, officers, and supervisory officers as well as the individually named Defendants herein.

10. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD and DHS, and for ensuring that the NYPD and DHS personnel obey the laws of the United States and the State of New York.
11. Defendant Malachi McKenith was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant McKenith was, at the time relevant herein, a police officer in the 40 Precinct. Defendant McKenith is sued in his individual and official capacities.
12. Defendant Carlos Velasquez was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Velasquez was, at the time relevant herein, a police officer in the 40 Precinct. Defendant Velasquez is sued in his individual and official capacities.
13. At all times relevant Defendants John and Jane Doe 1 through 5 were officers, supervisors, policy makers and/or officials employed by THE DEPARTMENT OF HOMELESS SERVICES. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 5, but such information is believed to be in the possession of the defendants. Defendants John and Jane Doe 1 through 4 are sued in their individual and official capacities.
14. At all times here the mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD and/or DHS, and otherwise performed and engaged in conduct

incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD and/or DHS at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and/or DHS and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD and/or DHS.

FACTUAL CHARGES

16. On February 26, 2019 at approximately 12:30AM, Plaintiff was inside of a Department of Homeless Services Facility, Willow Avenue Shelter, located at 1068 Franklin Avenue, Bronx, New York.
17. Plaintiff, who was a resident of the shelter, was lawfully present in the building and not committing any criminal offense.
18. While Plaintiff was speaking with an employee seated at the front-desk station, Defendants John and Jane Doe 1-5, DHS Officers, approached Plaintiff from behind and, without just cause, warning, or adequate provocation, did, while acting in concert, utilized a taser/stun gun upon Plaintiff multiple times.
19. Defendant John and Jane Doe 1-5's action did cause Plaintiff great pain and injury resulting in him losing consciousness.
20. Following Defendant John and Jane Doe 1-5's actions against Plaintiff, Defendants McKenith and Defendant Velasquez arrived at the scene and, while acting in concert committed several assaults and batteries upon Plaintiff. Defendant McKenith did curse, use derogatory language against Plaintiff, and did use a chokehold upon Plaintiff causing Plaintiff to become fearful for his life and safety and did cause emotional and physical injury to Plaintiff, the extent of which is unknown.

21. Defendant McKenith handcuffed complainant and transported Plaintiff to Lincoln Hospital.
22. Plaintiff was unlawfully detained at Lincoln Hospital for several hours.
23. Defendants searched Plaintiff's person without his authority or permission.
24. Several Defendants, who did not participate in the incident, but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
25. The force used by Defendants caused Plaintiff personal, physical, and emotional injuries for which he later sought medical treatment.
26. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate his civil rights.
27. At all times relevant hereto, Defendants were involved in the decision to detain Plaintiff without probable cause or failed to intervene in the actions of his fellow officers when they observed them arresting Plaintiff without probable cause.
28. The City has been on notice Defendant McKenith has a history and practice of misconduct against individuals which the City knew about but failed to take appropriate corrective action. In August 2017 he had five substantiated CCRB allegations. In January 2014 he had one substantiated allegation. In September 2013 he had two substantiated allegations. In total, Defendant McKentih had nine total complaints, thirty-nine total allegations, and eight substantiated allegations related to use of force, threatened use of force, and offensive language.
29. The City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. From reform-minded Commissioner Patrick

Murphy to the *Mollen* Commission twenty-five years later, the City has been repeatedly cautioned that a systemic tolerance for brutality flourishes throughout the NYPD. Indeed, years before said violation was perpetrated upon Plaintiff, the *Mollen* Commission report noted, “This tolerance, or willful blindness, extends to supervisors as well. This is because many supervisors share the perception that nothing is really wrong with a bit of unnecessary force and because they believe that this is the only way to fight crime today.” *Mollen* Comm. Report, at 49; The City of New York Commission to Combat Police Corruption, *passim*.

30. Plaintiff asserts that the Defendants who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar conduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission of such constitutionally violent behavior has become tantamount to an official policy or custom within the NYPD, and the City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the Civil Rights of those who may come into contact with police officers.
31. The individually named Defendants herein, as well as other officers serving in the employee of the NYPD, and the City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by the Constitution of the United States, in addition to the laws and Constitution of the State of New York, or without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, The City of New York and their respective policymakers and supervisors.

32. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption with the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers including those who are implicated via some incontrovertible form of evidence.
33. On March 18, 2018, *The New York Times* published an explosive article entitled *Promotions, Not Punishments For Officers Accused of Lying*, written by Joseph Goldstein. Mr. Goldstein shines the light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type of evidence, in alarmingly small percentage of officers' misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's reluctance or to investigate or disciplines officers who lie and posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusation relating to the officers intentionally false statements, with some allegations coming from federal and state judges.

34. On September 12th 2019, *The New York Times* published another article by Joseph Goldstein entitled *Officers Said They Smelled Pot, The Judge Called Them Liars*. Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics what has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judge to credit the line officers, and the increasing rates of occurrence
35. On April 24 2019, *The New York Times* published an article entitled *Detectives Lies Sent Three People to Prison, Prosecutors Charged* by Sean Piccolo, detailing the lies of NYPD second-grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Detective Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Detective Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one year
36. Other articles include: (i) *Testifying by Police a Stubborn Problem* by Joseph Goldstein, *The New York Times*, March 18th 2018; (ii) *New York Detective Charged With Faking Lineup Results* by Joseph Goldstein, *The New York Times*, February 17th 2018; (iii) *He Excelled as a Detective, Until Prosecutor Stop Believing Him* by Joseph Goldstein, *The New York Times*, October 17th 2017; (iv) *Review Board Notes Rise in the New York Police Officers False Statement* by David Goodman, *The New York Times*, May 14th 2015; (v) *In Brooklyn Gun Cases Suspicion Turns to the Police* by Stephanie Clifford, *The New York Times*, December 11th 2014 (vi) *Detective is Found Guilty of Planting Drugs*, by Tim

- Stelloh, *The New York Times* November 1, 2014; (vii) *The Drugs? They Came From The Police*, by Jim Dwyer, *The New York Times*, October 13, 2011.
37. The NYPD has a long-standing and ignominious record of failing to discipline its officers or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article entitled *2495 Reports of Police Bias*. One was deemed valid by the NYPD worried that within the last five years almost 2,500 several individuals have filed formal complaint with the NYPD alleging that an officer acted with biased towards them, would not one single being substantiated by the NYPD such a finding is playing the incredible and obviously the result of a deliberately poor or non-existent investigatory protocol the report commitment to combat the prejudices and the bias is exhibited by many of his officers.
38. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause
39. Upon information and belief, the NYPD, the city of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reason suspicion or the appropriate amount of force to be used.
40. Defendant's actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the right of any individuals who may

come into contact with dependents, should be inferred, because such makers deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers were supervisors of the NYPD, and city of New York.

41. Upon information and belief further details and facts relating to the unlawful policies customs or patterns and practices of the NYPD, the City of New York and their respective policymakers supervisors police officers or employees, will become known after the completion of Discovery, as such information is presently within the exclusive possession of defendants, the NYPD, and the City of New York
42. Upon information and belief, the personal files, records and disciplinary histories of the officers Defendants will reveal a history of constitutional violations indicative of Defendant City's, knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or poor employment in general, and that the probability of the individually named defendant committed similar violations in the future was extremely high.
43. Upon information and belief said personnel files records and disciplinary histories will conclusively show that the city, and the NYPD were fully aware Defendant passed constitutional violations, unacceptably high probability for the reoccurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as Law Enforcement Officers, or for employment in general, and not the NYPD, and the City of New York to engage in any preventative or corrective action in the likelihood of recurrence for such violations, which is tantamount to the city of tacit approval of such misconduct or the city's

deliberate indifference towards civil rights of those who may interact with employees including Plaintiff

44. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Unlawful Stop and Search Under
New York State Law

45. The above paragraphs are here incorporated by reference as though fully set forth.
46. Defendants violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped and searched Plaintiff without reasonable suspicion.
47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

Unlawful Stop and Search
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.

51. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
52. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
53. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
54. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

55. The above paragraphs are here incorporated by reference as though fully set forth.
56. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
57. Plaintiff was conscious of his confinement.
58. Plaintiff did not consent to his confinement.
59. Plaintiff's arrest and false imprisonment was not otherwise privileged.
60. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

62. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

63. The above paragraphs are here incorporated by reference as though fully set forth.
64. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
65. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
66. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
67. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. Defendants made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.
73. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
75. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

77. The above paragraphs are here incorporated by reference as though fully set forth.
78. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
79. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Failure to Intervene
New York State Law

80. The above paragraphs are here incorporated by reference as though fully set forth.

81. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
82. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene

Under 42 U.S.C. § 1983 Against Individual Defendants

84. The above paragraphs are here incorporated by reference as though fully set forth.
85. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
86. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
87. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process

Under New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth.
89. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

90. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
91. Defendant intended to inflict substantial harm upon Plaintiff.
92. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
93. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
94. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process

Under 42 U.S.C. § 1983 Against Individual Defendants

95. The above paragraphs are here incorporated by reference as though fully set forth.
96. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
97. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
98. Defendant intended to inflict substantial harm upon Plaintiff.
99. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
100. Defendant's actions deprived plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
101. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION
Negligent Hiring, Retention and Supervision
Under New York State Law

102. The above paragraphs are here incorporated by reference as though fully set forth.
103. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
104. Defendant City breached that duty of care.
105. Defendant City placed defendants in a position where they could inflict foreseeable harm.
106. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
107. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "Monell" Liability
42 U.S.C. § 1983 Against Individual Defendants

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

112. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
113. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
114. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with defendant City's employees.
115. Defendant City's employees engaged in such a egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to his display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
116. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
117. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- a) Not to be deprived of liberty without due process of law;
 - b) To be free from seizure and arrest not based upon probable cause;
 - c) To be free from excessive force;

- d) Not to have summary punishment imposed upon him; and
- e) To receive equal protection under the law.

118. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

JURY DEMAND

119. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- n) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
January 11, 2021



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 11, 2021



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
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Index No. :

SUPREME COURT OF THE STATE OF NE W YORK

COUNTY OF BRONX

ROGER SMITH

Plaintiff,

-against-

CITY OF NEW YORK; MALACHI MCKENITH, CARLOS VELASQUEZ; JOHN AND JANE

DOE ONE THROUGH FIVE, THE DEPARTMENT OF HOMELESS SERVICES

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s)for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for